

IN THE UNITED STATE DISTRICT COURT
FOR THE SOUTHERN DISTRICT OF NEW YORK

MALASIA LEWIS

PLAINTIFF,

-versus-

THE CITY OF NEW YORK, a municipal entity,
NEW YORK CITY POLICE SERGEANT
JOSEPH FAELLO, NEW YORK CITY POLICE
OFFICERS "JOHN DOES 1-5," NEW YORK CITY
POLICE OFFICER MELISSA RODRIGUEZ,

DEFENDANTS.

INDEX NO.12-CV-1279 (SAS)

ECF CASE
FIRST AMENDED
COMPLAINT
[JURY TRIAL
DEMANDED]

Plaintiff MALASIA LEWIS, represented by her attorneys, STECKLOW COHEN & THOMPSON, PLLC, complaining of the defendants, respectfully alleges as follows:

I. PRELIMINARY STATEMENT

1. Plaintiff MALASIA LEWIS bring this action for compensatory damages, punitive damages and attorney's fees pursuant to 42 U.S.C. § 1983 and 42 U.S.C. § 1988 for violations of her civil rights, as said rights are secured by said statutes and the Constitutions of the State of New York and the United States.

2. On Sunday, April 17, 2011 Plaintiff MALASIA LEWIS was a passenger in the front seat of an SUV which her friend was driving in Bronx, New York. Plaintiff MALASIA LEWIS' friend's five-year-old daughter was also in the back of the SUV and wearing a seatbelt. At the time when Plaintiff MALASIA LEWIS' interaction with the Defendant "John Does" POLICE OFFICERS began, the SUV was stopped at a red light on Ogden Avenue near 168th St.. One or more of the Defendant "John Doe" POLICE OFFICERS was standing on a nearby street corner. Defendant "John Doe" POLICE OFFICER 1 or Defendant POLICE OFFICER WILFREDO BENITEZ approached the SUV's passenger's side and asked Plaintiff MALASIA LEWIS' friend why her five-year-old daughter was not sitting in a car seat. In response, Plaintiff MALASIA LEWIS' friend told Defendant "John Doe" POLICE OFFICER 1 or Defendant POLICE OFFICER WILFREDO BENITEZ that her daughter was wearing a seatbelt. Following this exchange, Defendant "John Doe" POLICE OFFICER 1 or Defendant POLICE OFFICER WILFREDO BENITEZ then asked Plaintiff MALASIA LEWIS in, sum and substance, whether she "had a fuckin' problem?" Following a brief exchange between Plaintiff MALASIA LEWIS and Defendant "John Doe" POLICE OFFICER 1 or Defendant POLICE OFFICER WILFREDO BENITEZ, the same Defendant "John Doe" POLICE OFFICER 1 or Defendant POLICE OFFICER WILFREDO BENITEZ yanked Plaintiff MALASIA LEWIS out of the SUV, slammed her against it, and allowed and joined additional Defendant "John Does" POLICE OFFICERS in brutally striking, kicking, and attacking Plaintiff MALASIA LEWIS. Despite Plaintiff MALASIA LEWIS' lack of resistance and exclamation that she was not resisting, Defendant "John Does" POLICE OFFICERS proceeded to handcuff her, throw her in the back of a nearby marked police van (without allowing her the use of a seatbelt), and deliberately drove the same marked police van in a reckless fashion in order to slam

Plaintiff MALASIA LEWIS around the vehicle's interior while en route to the 44th Precinct. At the time of Plaintiff MALASIA LEWIS' arrival at the 44th Precinct, the brutal conduct of the Defendant "John Does" POLICE OFFICERS continued. After removing Plaintiff MALASIA LEWIS from the same marked police van, Defendant "John Does" POLICE OFFICERS persisted in jerking her around, striking her, and beating her. Shortly after entering the 44th Precinct, Defendant POLICE SERGEANT JOSEPH FAELLO spat on Plaintiff MALASIA LEWIS. Shortly after entering the 44th Precinct, Defendant POLICE SERGEANT JOSEPH FAELLO slammed Plaintiff MALASIA LEWIS' head into a wall until she blacked out and/or lost consciousness. Following the Defendant "John Does" POLICE OFFICERS' and Defendant POLICE SERGEANT "FIATTO's" interaction with and brutal beating of Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS was charged with Resisting Arrest (a Class A misdemeanor) and Obstruction of Governmental Administration in the second degree ("O.G.A. 2") (a Class A Misdemeanor). As a result of Defendant "John Does" POLICE OFFICERS' and Defendant POLICE SERGEANT JOSEPH FAELLO interaction with and brutal beating of Plaintiff MALASIA LEWIS, she lost several valuable pieces of personal property; suffered cuts on her wrists from the Defendant "John Does" POLICE OFFICERS' handcuffs; temporarily blacked out and/or lost consciousness; and suffered emotional distress, embarrassment, humiliation, and a severe deprivation of her constitutional rights. At length, after numerous court appearances, all charges against Plaintiff MALASIA LEWIS were disposed of under an Adjournment in Contemplation of Dismissal. Plaintiff MALASIA LEWIS brings this action in a quest for answers as to why she was punitively arrested without probable cause, brutally beaten, detained at length, and subjected to prosecution in the absence of criminal conduct.

3. Defendant POLICE OFFICER WILFREDO BENITEZ has been identified as a participant in Plaintiff MALASIA LEWIS' arrest, but his role in same is unclear at this time.

II. JURISDICTION

4. This action is brought pursuant to 42 U.S.C. §§ 1983 and 1988, and the Fourth and Fourteenth Amendments to the United States Constitution. Jurisdiction is conferred upon this Court by 28 U.S.C. §§ 1331, 1343(3) and (4) and the aforementioned statutory and constitutional provisions.

5. Plaintiff MALASIA LEWIS further invokes this Court's supplemental jurisdiction, pursuant to 28 USC. § 1367, over any and all State law claims and causes of action which derive from the same nucleus of operative facts and are part of the same case or controversy that gives rise to the federally based claims and causes of action.

III. VENUE

6. Venue is proper for the United States District Court for the Southern District of New York, pursuant to 28 U.S.C. § 1391(a), (b), and (c) and § 1402(b) because the claims arose in this district.

IV. JURY DEMAND

7. Plaintiff MALASIA LEWIS respectfully demands a trial by jury for all issues in this matter pursuant to Fed. R. Civ. P. 38(b).

V. THE PARTIES

8. At all times pertinent to this complaint, Plaintiff MALASIA LEWIS is and was a resident of the City of New York, State of New York, and the County of the Bronx.

9. Defendant THE CITY OF NEW YORK was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.

10. Defendant THE CITY OF NEW YORK maintains the New York City Police Department, a duly authorized public authority and/or police department, authorized to perform all functions of a police

department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, City of New York.

11. That at all times hereinafter mentioned, the Defendant POLICE OFFICERS "JOHN (and Jane) DOES 1-5" (collectively "Defendant John Doe POLICE OFFICERS" or individually "Defendant John Doe POLICE OFFICER") were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

12. That at all times hereinafter mentioned, the Defendant POLICE SERGEANT JOSEPH FAELLO was a duly sworn police sergeant of said department and was acting under the supervision of said department and according to his official duties.

13. That at all times hereinafter mentioned, the Defendant POLICE OFFICER MELISSA RODRIGUEZ was a duly sworn police officers of said department and was acting under the supervision of said department and according to her official duties.

14. The identities, sui generis, of some the Defendant John Doe POLICE OFFICERS at issue here are known to the Plaintiff MALASIA LEWIS at this time.

15. However, as it is unclear on the basis of evidence within the possession of Plaintiff MALASIA LEWIS which particular Defendant John Doe POLICE OFFICERS' conduct was attributable to the particular respective officer identities in the possession of Plaintiff.

16. PO ALLEN SELEGAN is listed as Plaintiff MALASIA LEWIS' arresting officer.

17. However, under the NYPD's policy of "turnover" arrests, codified in the NYPD Patrol Guide at PG §208-20, it is unclear whether PO ALLEN SELEGAN had any personal involvement in the arrest and detention of Plaintiff MALASIA LEWIS.

18. Defendant POLICE OFFICER WILFREDO BENITEZ of the NYPD 42nd Precinct signed the summons issued to Plaintiff MALASIA LEWIS' friend in the course of the incident giving rise to this action.

19. Defendant POLICE OFFICER WILFREDO BENITEZ has been identified by Defendant CITY OF NEW YORK as participating in the arrest of

20. Plaintiff MALASIA LEWIS will amend this complaint to name the remaining Defendant John Doe POLICE OFFICERS as their identities can be established to a reasonable certainty.

21. That at all times hereinafter mentioned the Defendant John Doe POLICE OFFICERS, the Defendant POLICE OFFICER WILFREDO BENITEZ, the Defendant POLICE SERGEANT JOSEPH FAELLO, and the Defendant POLICE OFFICER MELISSA RODRIGUEZ (collectively, "Defendant POLICE OFFICERS") were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

22. Each and all of the acts of the Defendant POLICE OFFICERS alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

23. Each and all of the acts of the Defendant POLICE OFFICERS alleged herein were done by said Defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

VI. FACTS COMMON TO ALL CLAIMS

24. Plaintiff MALASIA LEWIS is a Citizen of the United States of America.
25. The events herein described substantially took place on April 17, 2011 and April 18, 2011.
26. On the afternoon of April 17, 2011, the Plaintiff MALASIA LEWIS was a passenger in a SUV driven by her friend.
27. At the time when Plaintiff MALASIA LEWIS' interaction with the Defendant "John Doe" POLICE OFFICERS began, the SUV was stopped at a red light on Ogden Avenue near 168th Street in the Bronx.
28. The Plaintiff MALASIA LEWIS' interaction with the Defendant "John Doe" POLICE OFFICERS began when Defendant POLICE OFFICER WILFREDO BENITEZ approached the SUV.
29. The Plaintiff MALASIA LEWIS' interaction with the Defendant "John Doe" POLICE OFFICERS began when Defendant "John Doe" POLICE OFFICER 1 approached the SUV.
30. At the time that Defendant POLICE OFFICER WILFREDO BENITEZ approached the SUV, the Plaintiff MALASIA LEWIS' friend's five-year-old daughter was seated in the SUV's back seat.
31. At the time that Defendant "John Doe" POLICE OFFICER 1 approached the SUV, the Plaintiff MALASIA LEWIS' friend's five-year-old daughter was seated in the SUV's back seat.
32. At the time that Defendant POLICE OFFICER WILFREDO BENITEZ approached the SUV, the Plaintiff MALASIA LEWIS' friend's five-year-old daughter was seated in the SUV's back seat with a seat belt.
33. At the time that Defendant "John Doe" POLICE OFFICER 1 approached the SUV, the Plaintiff MALASIA LEWIS' friend's five-year-old daughter was seated in the SUV's back seat with a seat belt.
34. At the time that Defendant POLICE OFFICER WILFREDO BENITEZ approached the SUV, the SUV's passenger side window was down.
35. At the time that Defendant "John Doe" POLICE OFFICER 1 approached the SUV, the SUV's passenger side window was down.
36. When Defendant POLICE OFFICER WILFREDO BENITEZ approached the SUV he asked the Plaintiff MALASIA LEWIS' friend, in sum and substance, "why doesn't your daughter have a car seat?"
37. When Defendant "John Doe" POLICE OFFICER 1 approached the SUV he asked the Plaintiff MALASIA LEWIS' friend, in sum and substance, "why doesn't your daughter have a car seat?"
38. In response to Defendant POLICE OFFICER WILFREDO BENITEZ's question, Plaintiff MALALYSIA LEWIS' friend stated, in sum and substance, "my daughter has a seat belt on."
39. In response to Defendant "John Doe" POLICE OFFICER 1's question, Plaintiff MALALYSIA LEWIS' friend stated, in sum and substance, "my daughter has a seat belt on."
40. Following Plaintiff MALASIA LEWIS' friend's response, Defendant POLICE OFFICER WILFREDO BENITEZ then approached the passenger side of the SUV.
41. Following Plaintiff MALASIA LEWIS' friend's response, Defendant "John Doe" POLICE OFFICER 1 then approached the passenger side of the SUV.

42. Following Plaintiff MALASIA LEWIS' friend's response, Defendant POLICE OFFICER WILFREDO BENITEZ approached the passenger side of the SUV and asked Plaintiff MALASIA LEWIS, in sum and substance, whether she "had a fuckin' problem?"

43. Following Plaintiff MALASIA LEWIS' friend's response, Defendant "John Doe" POLICE OFFICER 1 approached the passenger side of the SUV and asked Plaintiff MALASIA LEWIS, in sum and substance, whether she "had a fuckin' problem?"

44. Plaintiff MALASIA LEWIS had not said anything to Defendant POLICE OFFICER WILFREDO BENITEZ before he approached the passenger side of the SUV and asked Plaintiff MALASIA LEWIS, in sum and substance, whether she "had a fuckin' problem?"

45. Plaintiff MALASIA LEWIS had not said anything to Defendant "John Doe" POLICE OFFICER 1 before he approached the passenger side of the SUV and asked Plaintiff MALASIA LEWIS, in sum and substance, whether she "had a fuckin' problem?"

46. No circumstances existed at that time to justify Defendant POLICE OFFICER WILFREDO BENITEZ's evident hostility to Plaintiff MALASIA LEWIS.

47. No circumstances existed at that time to justify Defendant "John Doe" POLICE OFFICER 1's evident hostility to Plaintiff MALASIA LEWIS.

48. In response to Defendant POLICE OFFICER WILFREDO BENITEZ's question, the Plaintiff MALASIA LEWIS asked in sum and substance, "excuse me, is that how you speak, Officer?"

49. In response to Defendant "John Doe" POLICE OFFICER 1's question, the Plaintiff MALASIA LEWIS asked in sum and substance, "excuse me, is that how you speak, Officer?"

50. In response to Plaintiff MALASIA LEWIS' question, Defendant POLICE OFFICER WILFREDO BENITEZ stated in sum and substance, "that's how I speak to you."

51. In response to Plaintiff MALASIA LEWIS' question, Defendant "John Doe" POLICE OFFICER 1 stated in sum and substance, "that's how I speak to you."

52. While standing before the passenger side of the SUV, Defendant POLICE OFFICER WILFREDO BENITEZ said to Plaintiff MALASIA LEWIS, in sum and substance, "if you don't get out of the SUV, I'm going to pull you out of it."

53. While standing before the passenger side of the SUV, Defendant "John Doe" POLICE OFFICER 1 said to Plaintiff MALASIA LEWIS, in sum and substance, "if you don't get out of the SUV, I'm going to pull you out of it."

54. In response to Defendant POLICE OFFICER WILFREDO BENITEZ's statement, Plaintiff MALASIA LEWIS stated in sum and substance "I know my rights, I didn't do anything wrong, why do you want to search me?"

55. In response to Defendant "John Doe" POLICE OFFICER 1's statement, Plaintiff MALASIA LEWIS stated in sum and substance "I know my rights, I didn't do anything wrong, why do you want to search me?"

56. At this time, Defendant POLICE OFFICER WILFREDO BENITEZ yanked Plaintiff MALASIA LEWIS out of the SUV.

57. At this time, Defendant "John Doe" POLICE OFFICER 1 yanked Plaintiff MALASIA LEWIS out of the SUV.

58. While being forcefully yanked out of the SUV by Defendant POLICE OFFICER WILFREDO BENITEZ, Plaintiff MALASIA LEWIS stated, in sum and substance, "I didn't do anything so why are you pulling me out of the SUV?"

59. While being forcefully yanked out of the SUV by Defendant "John Doe" POLICE OFFICER 1, Plaintiff MALASIA LEWIS stated, in sum and substance, "I didn't do anything so why are you pulling me out of the SUV?"

60. While being forcefully yanked out of the SUV by Defendant POLICE OFFICER WILFREDO BENITEZ, Plaintiff MALASIA LEWIS stated, in sum and substance, "I didn't do anything so why are you pulling me out of the SUV?"

61. While being forcefully yanked out of the SUV by Defendant "John Doe" POLICE OFFICER 1, Plaintiff MALASIA LEWIS stated, in sum and substance, "I didn't do anything so why are you pulling me out of the SUV?"

62. At or around the same time as the exchange between Plaintiff MALASIA LEWIS and Defendant POLICE OFFICER WILFREDO BENITEZ, Defendant "John Doe" POLICE OFFICER 2 took Plaintiff MALASIA LEWIS' friend's driver's license.

63. At or around the same time as the exchange between Plaintiff MALASIA LEWIS and Defendant "John Doe" POLICE OFFICER 1, Defendant "John Doe" POLICE OFFICER 2 took Plaintiff MALASIA LEWIS' friend's driver's license.

64. At this time, despite the fact that Plaintiff MALASIA LEWIS had not engaged in any illegal or criminal conduct of any sort, Defendant POLICE OFFICER WILFREDO BENITEZ continued forcefully handling Plaintiff MALASIA LEWIS.

65. At this time, despite the fact that Plaintiff MALASIA LEWIS had not engaged in any illegal or criminal conduct of any sort, Defendant "John Doe" POLICE OFFICER 1 continued forcefully handling Plaintiff MALASIA LEWIS.

66. At this time, despite the fact that Plaintiff MALASIA LEWIS had not engaged in any illegal or criminal conduct of any sort, Defendant POLICE OFFICER WILFREDO BENITEZ as well as one or more additional Defendant "John Does" POLICE OFFICERS slammed Plaintiff MALASIA LEWIS against the SUV.

67. At this time, despite the fact that Plaintiff MALASIA LEWIS had not engaged in any illegal or criminal conduct of any sort, Defendant "John Doe" as well as one or more additional Defendant "John Does" POLICE OFFICERS slammed Plaintiff MALASIA LEWIS against the SUV.

68. At this time, despite the fact that Plaintiff MALASIA LEWIS had not engaged in any illegal or criminal conduct of any sort, Defendant "John Doe" Police Officers 1-3 and Defendant POLICE OFFICER WILFREDO BENITEZ began attacking Plaintiff MALASIA LEWIS.

69. Plaintiff MALASIA LEWIS was terrified.

70. Plaintiff MALASIA LEWIS was not able to turn around to see the identities of the Defendant POLICE OFFICERS who were attacking her.

71. Plaintiff MALASIA LEWIS was not able to turn around to see the number of Defendant POLICE OFFICERS who were attacking her.

72. Plaintiff MALASIA LEWIS' friend attempted to intervene, but was threatened by one or more of the Defendant POLICE OFFICERS with physical harm if she did intervene.

73. Plaintiff MALASIA LEWIS' friend attempted to intervene, but was threatened by one or more of the Defendant "John Doe" POLICE OFFICERS with arrest if she did intervene.

74. Plaintiff MALASIA LEWIS' friend's child observed all of this, and was terrified.

75. At this time, despite the fact that Plaintiff MALASIA LEWIS had not engaged in any illegal or criminal conduct of any sort, Defendant "John Doe" POLICE OFFICERS 1-3 began and continued to repeatedly strike Plaintiff MALASIA LEWIS.

76. At this time, despite the fact that Plaintiff MALASIA LEWIS had not engaged in any illegal or criminal conduct of any sort, several Defendant "John Doe" POLICE OFFICERS and Defendant POLICE OFFICER WILFREDO BENITEZ began and continued to repeatedly kick Plaintiff MALASIA LEWIS.

77. While Plaintiff MALASIA LEWIS was suffering the aforementioned attacking, kicking, and striking by several Defendant "John Doe" POLICE OFFICERS and/or Defendant POLICE OFFICER WILFREDO BENITEZ, Plaintiff MALASIA LEWIS screamed in sum and substance, "I'm not resisting!"

78. None of the Defendant "John Doe" POLICE OFFICERS or Defendant POLICE OFFICER WILFREDO BENITEZ present intervened on Plaintiff MALASIA LEWIS' behalf.

79. Plaintiff MALASIA LEWIS suffered bruising and abrasions from being attacked by the Defendant "John Doe" POLICE OFFICERS and/or Defendant POLICE OFFICER WILFREDO BENITEZ.

80. After the Defendant "John Doe" POLICE OFFICERS and Defendant POLICE OFFICER WILFREDO BENITEZ attacked, kicked, and struck Plaintiff MALASIA LEWIS for a period of time on 168th St. near Ogden Avenue in the Bronx, Plaintiff MALASIA LEWIS was forcefully handcuffed by at least one of Defendant "John Doe" POLICE OFFICERS and/or Defendant POLICE OFFICER WILFREDO BENITEZ.

81. After the Defendant "John Doe" POLICE OFFICERS and Defendant POLICE OFFICER WILFREDO BENITEZ attacked, kicked, and struck Plaintiff MALASIA LEWIS for a period of time on 168th St. near Ogden Avenue in the Bronx, Plaintiff MALASIA LEWIS was forcefully thrown by at least one of the Defendant "John Does" POLICE OFFICERS and/or Defendant POLICE OFFICER WILFREDO BENITEZ into a marked police van parked near Plaintiff MALASIA LEWIS' friend's SUV.

82. After Plaintiff MALASIA LEWIS was forcefully thrown by at least one of the Defendant "John Does" POLICE OFFICER or Defendant POLICE OFFICER WILFREDO BENITEZ into the marked police van, the Defendant "John Doe" POLICE OFFICERS and Defendant POLICE OFFICER WILFREDO BENITEZ did not secure Plaintiff MALASIA LEWIS with a seatbelt.

83. Despite Plaintiff MALASIA LEWIS' request, the Defendant "John Doe" POLICE OFFICERS and Defendant POLICE OFFICER WILFREDO BENITEZ did not secure Plaintiff MALASIA LEWIS with a seatbelt.

84. Plaintiff MALASIA LEWIS was handcuffed, and could not put on a seatbelt herself.

85. With Plaintiff MALASIA LEWIS seated, handcuffed and without a seatbelt in the rear of the marked police van, Defendant "John Doe" POLICE OFFICERS 1-3 and Defendant POLICE OFFICER WILFREDO BENITEZ entered the vehicle.

86. With Plaintiff MALASIA LEWIS seated, handcuffed, and without a seatbelt, in the rear of the marked police van, one of the Defendant "John Doe" POLICE OFFICERS or Defendant POLICE OFFICER WILFREDO BENITEZ began driving the marked police van.

87. With Plaintiff MALASIA LEWIS seated, handcuffed, and without a seatbelt, in the rear of the marked police van, the same Defendant "John Doe" POLICE OFFICER or Defendant POLICE OFFICER WILFREDO BENITEZ was driving the vehicle negligently.

88. With Plaintiff MALASIA LEWIS seated, handcuffed, and without a seatbelt, in the rear of the marked police van, the same Defendant "John Doe" POLICE OFFICER or Defendant POLICE OFFICER WILFREDO BENITEZ was driving the vehicle recklessly.

89. With Plaintiff MALASIA LEWIS seated, handcuffed, and without a seatbelt, in the rear of the marked police van, the same Defendant "John Doe" POLICE OFFICER or Defendant POLICE OFFICER WILFREDO BENITEZ was driving the vehicle without regard to the requisite duty of care for the safety of his prisoner, Plaintiff MALASIA LEWIS.

90. With Plaintiff MALASIA LEWIS seated, handcuffed, and without a seatbelt, in the rear of the marked police van, the same Defendant "John Doe" POLICE OFFICER or Defendant POLICE OFFICER WILFREDO BENITEZ was driving the vehicle with reckless disregard for the safety of his prisoner, Plaintiff MALASIA LEWIS.

91. With Plaintiff MALASIA LEWIS seated, handcuffed, and without a seatbelt, in the rear of the marked police van, the same Defendant "John Doe" POLICE OFFICER or Defendant POLICE OFFICER WILFREDO BENITEZ was driving the vehicle with deliberate disregard for the safety of his prisoner, Plaintiff MALASIA LEWIS.

92. With Plaintiff MALASIA LEWIS seated, handcuffed, and without a seatbelt, in the rear of the marked police van, the same Defendant "John Doe" POLICE OFFICER or Defendant POLICE OFFICER WILFREDO BENITEZ was driving the vehicle and deliberately slamming on its brakes repeatedly.

93. Upon information and belief, the same Defendant "John Doe" POLICE OFFICER or Defendant POLICE OFFICER WILFREDO BENITEZ was driving the marked police van and deliberately slamming on its brakes in order to cause Plaintiff MALASIA LEWIS to fly forward and slam against the vehicle's interior.

94. While Plaintiff MALASIA LEWIS was falling around and being slammed against the interior of the marked police van by the same Defendant "John Doe" POLICE OFFICER'S or Defendant POLICE OFFICER WILFREDO BENITEZ'S deliberate actions of jamming and slamming of the vehicle's brakes, she stated in sum and substance, "How are you going to do this to a female?"

95. In response, the same Defendant "John Doe" POLICE OFFICER or Defendant POLICE OFFICER WILFREDO BENITEZ stated, in sum and substance, "you're a female?"

96. Plaintiff MALASIA LEWIS then stated, in sum and substance, "you're hurting me, stop braking!"

97. In response, the same Defendant "John Doe" POLICE OFFICER or Defendant POLICE OFFICER WILFREDO BENITEZ, while still deliberately and forcefully applying the brakes, stated in sum and substance, "good!"

98. The other Defendant "John Doe" POLICE OFFICERS or Defendant POLICE OFFICER WILFREDO BENITEZ did not intervene on Plaintiff MALASIA LEWIS' behalf.

99. After a time, the marked police van conveying Plaintiff MALASIA LEWIS reached the New York City Police Department's 44th Precinct.

100. Plaintiff MALASIA LEWIS was removed from the marked police van at that time.

101. When Plaintiff MALASIA LEWIS and Defendant "John Doe" POLICE OFFICERS 1-3 and Defendant POLICE OFFICER WILFREDO BENITEZ arrived at the 44th Precinct, a Defendant "John Doe" POLICE OFFICER or Defendant POLICE OFFICER WILFREDO BENITEZ began pushing Plaintiff MALASIA LEWIS repeatedly from behind as Defendant "John Doe" POLICE OFFICERS 1-3

and/or Defendant POLICE OFFICER WILFREDO BENITEZ were walking her toward the 44th Precinct's entrance.

102. At the time when Plaintiff MALASIA LEWIS and Defendant "John Doe" Police Officers 1-3 and Defendant POLICE OFFICER WILFREDO BENITEZ arrived at the 44th Precinct, Defendant "John Doe" POLICE OFFICER 1 or Defendant POLICE OFFICER WILFREDO BENITEZ began shoving Plaintiff MALASIA LEWIS around as they were walking her toward the 44th Precinct's entrance.

103. At the time when Plaintiff MALASIA LEWIS and Defendant "John Doe" Police Officers 1-3 and Defendant POLICE OFFICER WILFREDO BENITEZ arrived at the 44th Precinct, Defendant "John Doe" POLICE OFFICER 1 or Defendant POLICE OFFICER WILFREDO BENITEZ began shoving Plaintiff MALASIA LEWIS around in a manner that caused Plaintiff MALASIA LEWIS to fall over as they were walking her into the 44th Precinct's entrance.

104. Defendant "John Doe" POLICE OFFICERS 2 and 3 or Defendant POLICE OFFICER WILFREDO BENITEZ did not intervene on Plaintiff MALASIA LEWIS' behalf.

105. Plaintiff MALASIA LEWIS was escorted into the precinct.

106. Plaintiff MALASIA LEWIS was left in the custody of two female Defendant "Jane Doe" POLICE OFFICERS at that time.

107. Defendant POLICE SERGEANT JOSEPH FAELLO then approached Plaintiff MALASIA LEWIS.

108. Defendant POLICE SERGEANT JOSEPH FAELLO instructed the two female Defendant "Jane Doe" POLICE OFFICERS to leave the area.

109. The two female Defendant "Jane Doe" POLICE OFFICERS soon left the area where Plaintiff MALASIA LEWIS, handcuffed and badly beaten, was standing.

110. Following the departure of the two female Defendant "Jane Does" POLICE OFFICERS, the Defendant POLICE SERGEANT JOSEPH FAELLO entered the area where Plaintiff MALASIA LEWIS, handcuffed and badly beaten, was standing.

111. At or around this time, the Defendant POLICE SERGEANT JOSEPH FAELLO choked Plaintiff MALASIA LEWIS.

112. At or around this time, the Defendant POLICE SEGREANT JOSEPH FAELLO spat on Plaintiff MALASIA LEWIS.

113. At or around this time, the Defendant POLICE SERGEANT JOSEPH FAELLO repeatedly slammed Plaintiff MALASIA LEWIS' head into a wall.

114. At or around this time, the Defendant POLICE SERGEANT JOSEPH FAELLO proceeded to slam Plaintiff MALASIA LEWIS' head into a wall until she lost consciousness.

115. At or around this time, the Defendant POLICE SERGEANT JOSEPH FAELLO proceeded to slam Plaintiff MALASIA LEWIS' head into a wall until she blacked out.

116. At or around the same time as Defendant POLICE SERGEANT JOSEPH FAELLO'S brutal beating of Plaintiff MALASIA LEWIS he stated, in sum and substance, "When you're in my house, you show respect."

117. At that time, Defendant POLICE SERGEANT JOSEPH FAELLO was still holding Plaintiff MALASIA LEWIS by her throat.

118. After a time, Defendant POLICE SERGEANT JOSEPH FAELLO left Plaintiff MALASIA LEWIS.

119. Shortly thereafter, the two Defendant "Jane Doe" POLICE OFFICERS and Defendant POLICE OFFICER MELISSA RODRIGUEZ returned to the area which Plaintiff MALASIA LEWIS, brutally beaten and unconscious, was lying on the floor of the 44th Precinct.

120. At that time, Defendant POLICE OFFICER MELISSA RODRIGUEZ tried to calm Plaintiff MALASIA LEWIS down.

121. In response to Defendant POLICE OFFICER MELISSA RODRIGUEZ'S attempts to calm down Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS stated, in sum and substance, "No, you don't tell me to calm down when they're beating me."

122. As a result of the Defendant "John Does" POLICE OFFICERS' interaction with Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS suffered numerous cuts to her wrists from the Defendant "John Does" POLICE OFFICERS' excessively forceful handcuffing.

123. As a result of the Defendant "John Does" POLICE OFFICERS' as well as Defendant POLICE SERGEANT JOSEPH FAELLO'S interaction with and brutal beating of Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS suffered numerous bruises and injuries about her arms, face and body.

124. As a result of the Defendant "John Does" POLICE OFFICERS' as well as Defendant POLICE SERGEANT JOSEPH FAELLO'S interaction with and brutal beating of Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS suffered a black eye.

125. As a result of the Defendant "John Does" POLICE OFFICERS' as well as Defendant POLICE SERGEANT JOSEPH FAELLO'S interaction with and brutal beating of Plaintiff MALASIA LEWIS, a portion of Plaintiff MALASIA LEWIS' hair was torn from her scalp.

126. Following Defendant POLICE SERGEANT JOSEPH FAELLO'S interaction with and brutal beating of Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS was kept at the 44th Precinct until 2:00am the next morning, April 18, 2011.

127. During a portion of the time that Plaintiff MALASIA LEWIS was kept at the 44th Precinct, she was handcuffed to a pole.

128. During a portion of the time that Plaintiff MALASIA LEWIS was kept at the 44th Precinct, she was handcuffed to a pole in an area of the Precinct that was open to police officers.

129. During a portion of the time that Plaintiff MALASIA LEWIS was kept at the 44th Precinct, she was handcuffed to a pole in an area of the Precinct that was trafficked by police officers.

130. During the time that Plaintiff MALASIA LEWIS was kept at the 44th Precinct, over numerous instances, the Defendant "John Does" POLICE OFFICERS, while passing by Plaintiff MALASIA LEWIS, said taunting things to her.

131. During the time that Plaintiff MALASIA LEWIS was kept at the 44th Precinct, over numerous instances, she was hurt by the taunting remarks said to her by the offending Defendant "John Does" POLICE OFFICERS.

132. At 8:30 p.m., Plaintiff MALASIA LEWIS' family arrived in order to see her.

133. Sometime thereafter, Defendant POLICE OFFICER MELISSA RODRIGUEZ called Plaintiff MALASIA LEWIS' mother.

134. Over the phone, speaking with Defendant POLICE OFFICER MELISSA RODRIGUEZ, Plaintiff MALASIA LEWIS' mother asked in sum and substance, "Can I speak to my daughter?"

135. Over the phone, speaking with Plaintiff MALASIA LEWIS' mother, Defendant POLICE OFFICER MELISSA RODRIGUEZ, in response stated in sum and substance, "Yes, you can speak with your daughter."

136. While Plaintiff MALASIA LEWIS was speaking with her mother over the phone, she could not stop crying.

137. While Plaintiff MALASIA LEWIS was speaking with her mother over the phone, several Defendant "John Does" POLICE OFFICERS threatened Plaintiff MALASIA LEWIS.

138. While Plaintiff MALASIA LEWIS was speaking with her mother over the phone, several Defendant "John Does" POLICE OFFICERS approached Plaintiff MALASIA LEWIS in a manner which she perceived as threatening.

139. While Plaintiff MALASIA LEWIS was speaking with her mother over the phone, several Defendant "John Does" POLICE OFFICERS threatened Plaintiff MALASIA LEWIS in a manner calculated to deter Plaintiff MALASIA LEWIS from continuing her phone call with her mother.

140. While Plaintiff MALASIA LEWIS was speaking with her mother over the phone, several Defendant "John Does" POLICE OFFICERS threatened Plaintiff MALASIA LEWIS in a manner calculated to deter Plaintiff MALASIA LEWIS from informing her mother of the physical injuries she suffered at the hands of the Defendant "John Does" POLICE OFFICERS, Defendant POLICE OFFICER WILFREDO BENITEZ and Defendant POLICE SERGEANT JOSEPH FAELLO.

141. While Plaintiff MALASIA LEWIS was speaking with her mother over the phone, several Defendant "John Does" POLICE OFFICERS threatened Plaintiff MALASIA LEWIS in a manner calculated to deter Plaintiff MALASIA LEWIS from informing her mother of the psychological injuries she suffered as a result of the conduct of the Defendant "John Does" POLICE OFFICERS and the Defendant POLICE SERGEANT JOSEPH FAELLO.

142. While Plaintiff MALASIA LEWIS was speaking with her mother over the phone, several Defendant "John Does" POLICE OFFICERS threatened Plaintiff MALASIA LEWIS in a manner calculated to deter Plaintiff MALASIA LEWIS from informing her mother of the emotional suffering the Defendant "John Does" POLICE OFFICERS and the Defendant POLICE SERGEANT JOSEPH FAELLO had caused her.

143. While Plaintiff MALASIA LEWIS was speaking with her mother over the phone, she was forced to end her conversation with her mother because the Defendant "John Does" POLICE OFFICERS kept coming near her in a threatening manner.

144. While Plaintiff MALASIA LEWIS was speaking with her mother over the phone, she chose to end her conversation with her mother because the Defendant "John Doe" POLICE OFFICERS kept coming near her in a threatening manner.

145. While Plaintiff MALASIA LEWIS was speaking with her mother over the phone, she was forced to end her conversation with her mother because the Defendant "John Doe" POLICE OFFICERS kept coming near her in a manner which she perceived as threatening.

146. While Plaintiff MALASIA LEWIS was speaking with her mother over the phone, she chose to end her conversation with her mother because the Defendant "John Does" POLICE OFFICERS kept coming near her in a manner which she perceived as threatening.

147. As a result of the Defendant "John Does" POLICE OFFICERS' and Defendant POLICE SERGEANT JOSEPH FAELLO'S April 17 through 18, 2011 interaction with, intimidation of, and brutal beating of Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS lost multiple items of personal property.

148. As a result of the Defendant "John Doe" POLICE OFFICERS' and Defendant POLICE SERGEANT JOSEPH FAELLO'S April 17 through 18, 2011 interaction with, intimidation of, and brutal beating of Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS lost a ring with multiple round diamonds and baguettes.

149. As a result of the Defendant "John Does" POLICE OFFICERS' and Defendant POLICE OFFICER WILFREDO BENITEZ' April 17, 2011 interaction with, intimidation of, and brutal beating of Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS was charged with Obstruction of Governmental Administration in the Second Degree ("O.G.A. 2").

150. In the State of New York O.G.A. 2 is a Class A misdemeanor offense.

151. As a result of the Defendant "John Does" POLICE OFFICERS' and Defendant POLICE OFFICER WILFREDO BENITEZ' April 17, 2011 interaction with, intimidation of, and brutal beating of Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS was charged with Resisting Arrest.

152. In the State of New York, Resisting Arrest is Class A misdemeanor offense.

153. Following the conclusion of Defendant "John Does" POLICE OFFICERS', Defendant POLICE OFFICER WILFREDO BENITEZ' and Defendant POLICE SERGEANT JOSEPH FAELLO'S April 17 through 18, 2011 interaction with, intimidation of, and brutal beating of Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS appeared, in front of a judge, badly beaten, at or around 2:00pm on April 18, 2011.

154. Following Plaintiff MALASIA LEWIS' appearance before a judge on April 18, 2011 at or around 2:00pm, Plaintiff MALASIA LEWIS was released on her own recognizance.

155. The Criminal Complaint against Plaintiff MALASIA LEWIS falsely alleges that during the Defendant "John Doe" POLICE OFFICERS' and Defendant POLICE OFFICER WILFREDO BENITEZ' April 17, 2011 interaction with Plaintiff MALASIA LEWIS's friend, who was driving the SUV in which Plaintiff MALASIA LEWIS was present, Plaintiff MALASIA LEWIS exited the passenger side of her friend's SUV, preventing said officers from issuing a ticket to Plaintiff MALASIA LEWIS' friend.

156. In fact, Plaintiff MALASIA LEWIS only exited her friend's SUV when she was physically removed from same by one or more of the Defendant "JOHN DOE" POLICE OFFICERS.

157. The Criminal Complaint against Plaintiff MALASIA LEWIS falsely alleges that during the Defendant "John Does" POLICE OFFICERS' April 17, 2011 interaction with, intimidation of, and brutal beating of Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS stood in the way of one of the Defendant "John Does" POLICE OFFICERS.

158. In fact, Plaintiff MALASIA LEWIS took no action of any kind to interfere with the Defendant "JOHN DOE" POLICE OFFICERS' or Defendant POLICE OFFICER WILFREDO BENITEZ' execution of their official duties.

159. The Criminal Complaint against Plaintiff MALASIA LEWIS falsely alleges that during the Defendant "John Does" POLICE OFFICERS' and Defendant POLICE OFFICER WILFREDO BENITEZ' April 17, 2011 interaction with, intimidation of, and brutal beating of Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS stood in the way of one of the Defendant "John Does" POLICE OFFICERS or Defendant POLICE OFFICER WILFREDO BENITEZ in order to prevent him from issuing Plaintiff MALASIA LEWIS' friend a summons for a traffic violation.

160. In fact, Plaintiff MALASIA LEWIS did not exit her friend's SUV until she was forcibly removed from it by one or more of the Defendant "John Doe" POLICE OFFICERS and/or Defendant POLICE OFFICER WILFREDO BENITEZ.

161. The Criminal Complaint against Plaintiff MALASIA LEWIS falsely alleges that during the Defendant "John Does" POLICE OFFICERS' and Defendant POLICE OFFICER WILFREDO BENITEZ' April 17, 2011 interaction with, intimidation of, and brutal beating of Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS refused to move out of the way of one of the Defendant "John Does" POLICE OFFICERS.

162. In fact, Plaintiff MALASIA LEWIS never stood in the way of the Defendant "John Doe" POLICE OFFICERS or Defendant POLICE OFFICER WILFREDO BENITEZ as one or more of them issued a ticket to Plaintiff MALASIA LEWIS' friend.

163. The Criminal Complaint against Plaintiff MALASIA LEWIS falsely alleges that during the Defendant "John Does" POLICE OFFICERS' and Defendant POLICE OFFICER WILFREDO BENITEZ' April 17, 2011 interaction with, intimidation of, and brutal beating of Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS stated in sum and substance "Fuck the cops" while standing in the way of one of the Defendant "John Does" POLICE OFFICERS or Defendant POLICE OFFICER WILFREDO BENITEZ.

164. In fact, Plaintiff MALASIA LEWIS made no such statement.

165. The Criminal Complaint against Plaintiff MALASIA LEWIS falsely alleges that during the Defendant "John Does" POLICE OFFICERS' and Defendant POLICE OFFICER WILFREDO BENITEZ' April 17, 2011 interaction with, intimidation of, and brutal beating of Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS flailed her arms when one of the Defendant "John Does" POLICE OFFICERS or Defendant POLICE OFFICER WILFREDO BENITEZ attempted to handcuff her.

166. The Criminal Complaint against Plaintiff MALASIA LEWIS falsely alleges that during the Defendant "John Does" POLICE OFFICERS' and Defendant POLICE OFFICER WILFREDO BENITEZ' April 17, 2011 interaction with, intimidation of, and brutal beating of Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS kicked her legs when one of the Defendant "John Does" POLICE OFFICERS or Defendant POLICE OFFICER WILFREDO BENITEZ attempted to handcuff her.

167. The Criminal Complaint against Plaintiff MALASIA LEWIS falsely alleges that during the Defendant "John Does" POLICE OFFICERS' and Defendant POLICE OFFICER WILFREDO BENITEZ' April 17, 2011 interaction with, intimidation of, and brutal beating of Plaintiff MALASIA LEWIS, Plaintiff MALASIA LEWIS refused to allow one of the Defendant "John Does" POLICE OFFICERS or Defendant POLICE OFFICER WILFREDO BENITEZ to handcuff her.

168. Plaintiff MALASIA LEWIS returned to Court on June 29, 2011.

169. Plaintiff MALASIA LEWIS returned to Court on August 12, 2011.

170. Plaintiff MALASIA LEWIS returned to Court on October 17, 2011.

171. Plaintiff MALASIA LEWIS returned to Court on December 7, 2011.

172. Plaintiff MALASIA LEWIS returned to Court on February 3, 2012

173. At her February 3, 2012 appearance, Plaintiff MALASIA LEWIS received an Adjournment in Contemplation of Dismissal of all charges preferred against her.

174. Upon information and belief, Plaintiff MALASIA LEWIS' O.G.A. 2 charge was a "cover-charge" created in order to justify the Defendant "John Does" POLICE OFFICERS' and Defendant POLICE OFFICER WILFREDO BENITEZ' illegal "Contempt of Cop" arrest of Plaintiff MALASIA LEWIS.

175. Upon information and belief, Plaintiff MALASIA LEWIS'S O.G.A. 2 charge was a "cover-charge" created in order to justify the Defendant "John Does" POLICE OFFICERS' and Defendant POLICE OFFICER WILFREDO BENITEZ' "Contempt of Cop" arrest of Plaintiff MALASIA LEWIS in the absence of probable cause.

176. Upon information and belief, Plaintiff MALASIA LEWIS' Resisting Arrest charge was a "cover-charge" created in order to justify the Defendant "John Does" POLICE OFFICERS' and Defendant POLICE OFFICER WILFREDO BENITEZ' illegal "Contempt of Cop" arrest.

177. Upon information and belief, Plaintiff MALASIA LEWIS'S Resisting Arrest charge was a "cover-charge" created in order to justify the Defendant "John Does" POLICE OFFICERS' and Defendant POLICE OFFICER WILFREDO BENITEZ' Probable-Cause-Less "Contempt of Cop" arrest.

178. As a result of the foregoing, Plaintiff MALASIA LEWIS sustained, inter alia, mental injuries, emotional distress, embarrassment, loss of property, damage of property, humiliation, and deprivation of her constitutional rights.

"CONTEMPT OF COP" AND "COVER CHARGE" ARRESTS

179. On February 28, 2008, the Seattle Post-Intelligencer published an investigative review of six (6) years of Seattle Municipal Court files, wherein the Post-Intelligencer's investigators found that African-Americans in that predominantly Caucasian city were arrested solely on charges of "obstructing a public officer" and related crimes such as resisting arrest eight times as often as Caucasians.¹

180. The Seattle Post-Intelligencer's investigative review cited above also found that the Seattle City Attorney's Office dropped nearly half of all Seattle criminal cases predicated solely on charges of "obstructing a public officer" and related crimes such as resisting arrest between January 2002 and 2008. See fn1.

181. In response to Seattle POLICE OFFICERS' questionable arrest activities discussed above, "Leo Poort, the [Seattle Police] department's legal adviser, included warnings about obstruction arrests in... his top twelve (12) tips to officers for 'avoiding civil liability lawsuits.' 'Don't arrest for 'contempt' of cop,' he wrote in tip No. 3. 'Officers must be thick skinned and not unduly influenced by the attitudes of persons they contact. Flunking the 'attitude' test (is) not a bookable offense.'" See fn1.

182. In a review of San Jose criminal cases published on October 31, 2009, the San Jose Mercury News reported that the Santa Clara County Prosecutor declined to prosecute over one-third (33.33...%) of resisting arrest cases brought by San Jose police, a rate that is markedly disproportionate to the Santa Clara County Prosecutor's general twenty percent (20%) decline-to-prosecute rate.²

183. The San Jose Mercury News investigation cited above also found that the San Jose Police Department did not sustain or substantiate civilian complaints with respect to any of the ninety-nine (99) use-of-force cases that it reviewed in 2008, even though the San Jose Independent Police Auditor disagreed with police findings in twenty-five (25) of those ninety-nine (99) cases. See fn2.

184. In response to the San Jose Mercury News investigation cited above, the San Jose Police Department instituted a new policy of tracking arrests where it appears that resisting arrest is being

¹ Nalder, Kamb and Lathrop, "Blacks Are Arrested on 'Contempt of Cop' Charge at Higher Rate," Seattle Post-Intelligencer, February 28, 2008. Article incorporated herein by reference and available online at http://www.seattlepi.com/local/353020_obstructmain28.asp

² Webby, Sean, "Mercury News investigation: San Jose police often use force in resisting-arrest cases," San Jose Mercury News, October 31, 2009. Article incorporated by reference herein and available online at http://www.mercurynews.com/top-stories/ci_13686438?nclick_check=1

used as a cover charge to justify unnecessary and excessive police uses of force on civilians. See fn2.

185. A November 19, 1997 New York Times special report on police brutality predicated on perceived or actual disrespect of New York City POLICE OFFICERS noted that at that time, Defendant City of New York did not monitor or track police use or levying of charges such as disorderly conduct or resisting arrest.³

186. November 19, 1997 New York Times special report on police brutality predicated on perceived or actual disrespect of New York City POLICE OFFICERS noted that at that time, Defendant City of New York did not monitor or track police use or levying of charges such as disorderly conduct or resisting arrest, despite considerable anecdotal evidence that New York City POLICE OFFICERS were arresting individuals on those and other like charges to justify use of force and/or to punish those individuals for “contempt of cop.” See fn3.

187. The above-cited New York Times special report noted that Los Angeles had already instituted a system for tracking the initiation and dispositions of “contempt of cop” and “cover charge” charges such as resisting arrest and disorderly conduct as of the time of that article’s publication in 1997. See fn3.

188. Upon information and belief, the “contempt of cop” and “cover charge” charges levied most regularly by New York City POLICE OFFICERS are disorderly conduct, resisting arrest, and obstruction of governmental administration.

189. Upon information and belief, “contempt of cop” and “cover charge” charges such as disorderly conduct, resisting arrest, and obstruction of governmental administration are relatively easy for police to levy in the absence of actual probable cause because they may arise out of nearly any police-civilian interactions.

190. Upon information and belief, “contempt of cop” and “cover charge” charges such as disorderly conduct, resisting arrest, and obstruction of governmental administration are relatively easy for police to levy in the absence of actual probable cause because they can be levied solely upon the allegations of the arresting officer(s) without reference to physical evidence or witness observation of criminal acts.

191. Upon information and belief, to date, Defendant City of New York has not implemented any particular, training, oversight measures or policies designed or intended to curtail the improper use by New York City POLICE OFFICERS of so-called “contempt of cop” and “cover charge” charges such as disorderly conduct, resisting arrest, and obstruction of governmental administration.

192. Upon information and belief, and despite due and repeated notice that New York City POLICE OFFICERS have an ongoing custom or practice of charging individuals with crimes and violations such as resisting arrest, disorderly conduct, and obstruction of governmental administration for personal vindication and/or as pretexts to justify use of force, to date, Defendant City of New York has not implemented any particular training, oversight measures or policies designed or intended to curtail the improper use by New York City POLICE OFFICERS of so-called “contempt of cop” and “cover

³ Sontag, Deborah, and Barry, Dan, “CHALLENGE TO AUTHORITY: A special report.; Disrespect as Catalyst for Brutality,” New York Times, November 19, 1997. Article incorporated by reference herein and available online at <http://query.nytimes.com/gst/fullpage.html?res=9807E7D9163BF93AA25752C1A961958260&scp=8&sq=contempt+of+cop&st=cse&pagewanted=all>

charge” charges such as disorderly conduct, resisting arrest, and obstruction of governmental administration.

193. Upon information and belief, and despite due and repeated notice that New York City POLICE OFFICERS have an ongoing custom or practice of charging individuals with crimes and violations such as resisting arrest, disorderly conduct, and obstruction of governmental administration as pretexts to justify punitive false arrests undertaken in the absence of probable cause, to date, Defendant City of New York has not implemented any particular training, oversight measures or policies designed or intended to curtail the improper use by New York City POLICE OFFICERS of so-called “contempt of cop” and “cover charge” charges such as disorderly conduct, resisting arrest, and obstruction of governmental administration.

194. Upon information and belief, and despite due and repeated notice that New York City POLICE OFFICERS such as the Defendant POLICE OFFICERS have charged and continue to charge individuals with crimes and violations such as resisting arrest, disorderly conduct, and obstruction of governmental administration as pretexts to justify punitive false arrests undertaken in the absence of probable cause, to date Defendant City of New York has not implemented any particular oversight measures or policies designed or intended to curtail the improper use by New York City POLICE OFFICERS of so-called “contempt of cop” and “cover charge” charges such as disorderly conduct, resisting arrest, and obstruction of governmental administration.

195. The particular arrest of Plaintiff MALASIA LEWIS is believed to have been motivated in whole or in part by the aforesaid custom or practice of charging individuals with crimes and violations such as resisting arrest, disorderly conduct, and obstruction of governmental administration for personal vindication and/or as pretexts to justify use of force, and/or to justify punitive false arrests because Plaintiff MALASIA LEWIS’ arrest was undertaken in the absence of probable cause to arrest.

196. The particular arrest of Plaintiff MALASIA LEWIS is believed to have been motivated in whole or in part by the aforesaid custom or practice of charging individuals with crimes and violations such as resisting arrest, disorderly conduct, and obstruction of governmental administration for personal vindication and/or as pretexts to justify use of force, and/or to justify punitive false arrests because they were undertaken in a manner which indicated that the individual Defendant “John Does” POLICE OFFICERS who participated in Plaintiff MALASIA LEWIS’ arrest made the determination to arrest her before determining why she should be arrested.

197. The particular arrest of the Plaintiff MALASIA LEWIS is believed to have been motivated in whole or in part by the aforesaid custom or practice of charging individuals with crimes and violations such as resisting arrest, disorderly conduct, and obstruction of governmental administration for personal vindication and/or as pretexts to justify use of force, and/or to justify punitive false arrests, because the Defendant “John Does” POLICE OFFICERS informed Plaintiff MALASIA LEWIS that she was being arrested after it was already established that she was not carrying any weapons or illegal substances, and did not have any outstanding warrants against her, and immediately following her attempt to question the Defendant “John Does” POLICE OFFICERS as to why she was being detained.

“TESTIFYING” and FALSE ARRESTS

198. On information and belief, the arrest of Plaintiff MALASIA LEWIS was predicated on a false allegation that Plaintiff MALASIA LEWIS had resisted the Defendant “John Does” POLICE OFFICERS’ and Defendant POLICE OFFICER WILFREDO BENITEZ’ attempts to arrest her.

199. Plaintiff MALASIA LEWIS did not in fact resist the Defendant “John Does” POLICE OFFICERS’

and Defendant POLICE OFFICER WILFREDO BENITEZ' attempts to arrest her.

200. On information and belief, the arrest of Plaintiff MALASIA LEWIS was predicated on a false allegation that Plaintiff MALASIA LEWIS had obstructed the Defendant "John Does" POLICE OFFICERS and/or Defendant POLICE OFFICER WILFREDO BENITEZ from issuing a summons for a traffic violation to her friend.

201. Plaintiff MALASIA LEWIS did not in fact obstruct the Defendant "John Does" POLICE OFFICERS or Defendant POLICE OFFICER WILFREDO BENITEZ from issuing a summons for a traffic violation to her friend.

202. On information and belief, one or more Defendant "John Does" POLICE OFFICERS or Defendant POLICE OFFICER WILFREDO BENITEZ falsely alleged that Plaintiff MALASIA LEWIS resisted her arrest in order to justify the arrest and brutal beating of Plaintiff MALASIA LEWIS.

203. On information and belief, one or more Defendant "John Does" POLICE OFFICERS falsely alleged that Plaintiff MALASIA LEWIS obstructed one of the Defendant "John Does" POLICE OFFICERS from issuing a summons of a traffic violation to her friend in order to justify the arrest and brutal beating of Plaintiff MALASIA LEWIS.

204. On July 7, 1994, a blue ribbon panel led by Hon. J. Milton Mollen ("The Mollen Commission") presented the report of its nearly two-year investigation into allegations of NYPD corruption, undertaken in 1992 at the behest of then-Mayor David Dinkins ("The Mollen Commission Report," "The Report")⁴.

205. The Mollen Commission Report was subtitled "ANATOMY OF FAILURE: A PATH FOR SUCCESS." The Report at null.

206. The July 7, 1994 *Mollen Commission Report* was prepared for and at the request of the Defendant City of New York, and therefore knowledge of its contents may be imputed to Defendant City of New York.

207. Among the species of police corruption explored in The Report, particular note was made of the practice of "testilying," or false testimony and falsification of records in connection with arrests. The Report at 36.

208. The Mollen Commission found "testilying" to be "probably the most common form of police corruption facing the criminal justice system." *Id.*

209. The Mollen Commission made particular note of "testilying" in an undisclosed unit of the NYPD's narcotics division, "where... [The Mollen Commission's] analysis of police records and intelligence sources indicated that the incidence of falsifications might run high." The Report at 38-39.

210. The Report continues: "While we cannot disclose the details of our investigation because we have referred the evidence to a prosecutor, the evidence suggests that certain officers in this unit falsified documents and may have committed testimonial perjury to conceal constitutional violations. Even more troubling, **the evidence suggests that the unit's commanding officer not only tolerated, but encouraged, this unlawful practice.**" The Report at 39 (emphasis added).

⁴ Mollen, Baer, Evans, Lankler, Tyler, Armao, Cornfeld, "The City of New York Commission to Investigate Allegations of Police Corruption and The Anti-Corruption Procedures of The Police Department Commission Report," July 7, 1994, City of New York. Incorporated by reference herein and available online at http://www.parc.info/client_files/Special%20Reports/4%20-%20Mollen%20Commission%20-%20NYPD.pdf.

211. The practice of officers “testilying” with continues in the NYPD to date.

212. In 2008, now-former NYPD undercover officer Steve Anderson was caught on video purchasing three bags of cocaine from an employee of a nightclub in Queens.⁵

213. Anderson did not arrest the person who sold the drugs to him. Id.

214. Instead, Anderson provided the drugs to then-fellow NYPD undercover officer Henry Tavaréz. Id.

215. Tavaréz then used the drugs to support the false arrests of four people. Id.

216. As a result of this and like incidents, prosecutors in Brooklyn and Queens have dismissed charges against approximately four hundred (400) individuals whose arrests were believed to have been tainted by the corrupt acts of NYPD officers. Id.

217. Another detective from the same unit, Jason Arbeeny, was recently convicted of various crimes in relation to his own 2007 conduct of planting a bag of crack cocaine in the car of a Coney Island couple to support narcotics charges against said couple.⁶

218. In that case, “[b]efore announcing the verdict, Justice Reichbach scolded the department for what he described as a widespread culture of corruption endemic in its drug units. ‘I thought I was not naïve,’ he said. ‘But even this court was shocked, not only by the seeming pervasive scope of misconduct but even more distressingly by the seeming casualness by which such conduct is employed.’” Id.

219. The particular arrest of Plaintiff MALASIA LEWIS is believed to have been effected in whole or in part by the aforesaid practices of “testilying” because Plaintiff MALASIA LEWIS’ arrest was undertaken in the absence of probable cause to arrest.

220. The particular arrest of Plaintiff MALASIA LEWIS is believed to have been effected in whole or in part by the aforesaid practices of “testilying” because it was undertaken in a manner which indicated that the individual Defendant “John Does” POLICE OFFICERS and Defendant POLICE OFFICER WILFREDO BENITEZ who participated in Plaintiff MALASIA LEWIS’ arrest made the determination to arrest Plaintiff MALASIA LEWIS for Resisting Arrest when Plaintiff MALASIA LEWIS had not in any way resisted the attempted arrest by the Defendant “John Does” POLICE OFFICERS and/or Defendant POLICE OFFICER WILFREDO BENITEZ.

221. The particular arrest of Plaintiff MALASIA LEWIS is believed to have been effected in whole or in part by the aforesaid practices of “testilying” because it was undertaken in a manner which indicated that the individual Defendant “John Does” POLICE OFFICERS and Defendant POLICE OFFICER WILFREDO BENITEZ who participated in Plaintiff MALASIA LEWIS’ arrest made the determination to arrest Plaintiff MALASIA LEWIS for Obstruction of Governmental Administration in the second degree when Plaintiff MALASIA LEWIS had not in any way attempted to obstruct the Defendant “John Does” POLICE OFFICERS’ and/or Defendant POLICE OFFICER WILFREDO BENITEZ administration of their governmental duties.

⁵ Jim Dwyer, “The Drugs? They Came From The Police,” New York Times, October 13, 2011, incorporated by reference herein and available online at <http://www.nytimes.com/2011/10/14/nyregion/those-drugs-they-came-from-the-police.html?ref=nyregion>

⁶ Tim Stellow, “Detective is Found Guilty of Planting Drugs,” New York Times, November 1, 2011, incorporated by reference herein and available online at http://www.nytimes.com/2011/11/02/nyregion/brooklyn-detective-convicted-of-planting-drugs-on-innocent-people.html?_r=2&partner=rss&emc=rss

222. The particular arrest of Plaintiff MALASIA LEWIS is believed to have been effected in whole or in part by the aforesaid practices of “testilying” because it was undertaken in a manner which indicated that the individual Defendant “John Does” POLICE OFFICERS and Defendant POLICE OFFICER WILFREDO BENITEZ who participated in Plaintiff MALASIA LEWIS’ arrest falsely averred that Plaintiff MALASIA LEWIS had resisted her arrest in support of the prosecution of the Plaintiff.

223. The particular arrest of Plaintiff MALASIA LEWIS is believed to have been effected in whole or in part by the aforesaid practices of “testilying” because it was undertaken in a manner which indicated that the individual Defendant “John Does” POLICE OFFICERS and Defendant POLICE OFFICER WILFREDO BENITEZ who participated in Plaintiff MALASIA LEWIS’ arrest falsely averred that Plaintiff MALASIA LEWIS had obstructed the Defendant “John Does” POLICE OFFICERS’ and/or Defendant POLICE OFFICER WILFREDO BENITEZ’ administration of their governmental duties in support of the prosecution of the Plaintiff.

224. The particular arrest of Plaintiff MALASIA LEWIS is believed to have been effected in whole or in part by the aforesaid practices of “testilying” because the Defendant “John Does” POLICE OFFICERS arrested and initiated criminal proceedings against Plaintiff MALASIA LEWIS after it was already established that Plaintiff MALASIA LEWIS was not carrying any weapons or illegal substances, and did not have any outstanding warrants against her, but after Plaintiff MALASIA LEWIS had been seized and brutally beaten by the Defendant “John Does” POLICE OFFICERS.

ARREST QUOTAS

225. Upon information and belief, the arrest of the Plaintiff MALASIA LEWIS was motivated wholly by the Defendant “John Does” POLICE OFFICERS’ need to meet quantitative enforcement “productivity goals” promulgated by Defendant CITY OF NEW YORK.

226. Upon information and belief, the arrest of the Plaintiff MALASIA LEWIS was motivated in part by the Defendant “John Does” POLICE OFFICERS’ need to meet quantitative enforcement “productivity goals” promulgated by Defendant CITY OF NEW YORK.

227. Upon information and belief, the arrest of the Plaintiff MALASIA LEWIS was motivated wholly by the Defendant “John Does” POLICE OFFICERS’ need to meet quantitative enforcement “productivity goals” promulgated by policymakers and/or supervisory staff of Defendant CITY OF NEW YORK’S police department.

228. Upon information and belief, the arrest of the Plaintiff MALASIA LEWIS was motivated in part by the Defendant “John Does” POLICE OFFICERS’ need to meet quantitative enforcement “productivity goals” promulgated by policymakers and/or supervisory staff of Defendant CITY OF NEW YORK’S police department.

229. The existence of the aforesaid unconstitutional arrest quota custom and/or policy may be inferred from the full page color advertisement placed by the Patrolmen’s Benevolent Association of the City of New York in the May 7, 2012 edition of the New York Daily News, which states “Don’t Blame the Cop[,] Blame NYPD Management For the pressure to write summonses and the pressure to convict motorists[.] Because of ticket quotas, New York City police officers are being pressured to write summonses to as many motorists as possible.... ” A reproduction of the advertisement in question is attached hereto as **Exhibit “A.”**

230. The existence of the aforesaid unconstitutional arrest quota custom and/or policy may further be inferred to have continued to the present date from the opinion granting class certification in Floyd v. The City of New York, 08 Civ 1034 (SDNY May 16, 2012), in which the Honorable District Judge Shira A. Scheindlin noted the existence of a Police Officer Performance Objectives Operations Order

dated October 17, 2011, in which "Commissioner Kelly directed all commands that 'Department managers **can** and **must** set performance goals,' relating to 'the issuance of summonses, the stopping and questioning of suspicious individuals, and the arrests of criminals.'" Floyd Document 206 at 18-19, citing 10/17/11 Police Officer Performance Objectives Operations Order. (emphasis in original).

231. The existence of the aforesaid unconstitutional arrest quota custom and/or policy was confirmed as a finding of fact when, on February 18, 2011, the jury in Bryant v. City of New York, Kings County Supreme Court Docket #022011/2007, found that the Plaintiff in that case's arrest had resulted from a policy "regarding the number of arrests officers were to make that violated Plaintiff's constitutional rights and contributed to her arrest imposed by Defendant City of New York.

232. The existence of the aforesaid unconstitutional arrest quota custom and/or policy may additionally be inferred from repeated occurrences of similar wrongful conduct, as documented in lawsuits including but not limited to the following civil rights actions filed against the City of New York:

- **Alvin Williams v. The City of New York et al.**, United States District Court, Southern District of New York, 05 CV 4013.
- **Corey Williams v. The City of New York et al.**, United States District Court, Eastern District of New York, 07 CV 5362.

233. The existence of the aforesaid unconstitutional arrest quota custom and/or policy may further be inferred from the admission by Deputy Commissioner Paul J. Browne, as reported by the media on November 8, 2010, that commanders are permitted to set "productivity goals."⁷

234. The existence of the aforesaid unconstitutional arrest quota custom and/or policy may further be inferred from the posting of lists of quantitative targets for various forms of summonses at the 77th Precinct in Brooklyn. See fn7.

235. Attached hereto as **Exhibit "B"** are copies of the quantitative target sheets obtained from the 77th Precinct by or on behalf of the New York Daily News, as referenced in the aforesaid November 8, 2010 New York Daily News article.

236. The existence of the aforesaid unconstitutional arrest quota custom and/or policy may further be inferred from the tapes recordings acquired by WABC-TV/DT, including, among other admissions, a 41st precinct sergeant explaining that each of his OFFICERS is held to a twenty summons per month and one arrest per month enforcement quota, as reported by the media on March 3, 2010.⁸

237. The existence of the aforesaid unconstitutional arrest quota custom and/or policy may further be inferred from the tape recordings acquired by the Village Voice, including, among other admissions, an 81st precinct sergeant telling his OFFICERS to make "special" arrests as directed by their superiors even if they must void the arrests at the end of their shifts, as reported by the media on

⁷ Fanelli, James, "Cops At Brooklyn's Crime-Ridden 77th Precinct Told To Meet Quotas For Moving Violations, Memos Say," New York Daily News, November 8, 2010. Article incorporated by reference herein and available online at http://www.nydailynews.com/ny_local/2010/11/08/2010-11-08_cops_told_to_meet_quotas.html.

⁸ Hoffer, Jim, "NYPD Officer Claims Pressure To Make Arrests," WABC News, March 3, 2010. Article incorporated by reference herein and available online at <http://abclocal.go.com/wabc/story?section=news/investigators&id=7305356>.

May 11, 2010.⁹

238. The particular arrest of Plaintiff MALASIA LEWIS is believed to have been motivated in whole or in part by the aforesaid unconstitutional arrest quota custom and/or policy because they were undertaken in the absence of probable cause to arrest.

239. The particular arrest of the Plaintiff MALASIA LEWIS is believed to have been motivated in whole or in part by the aforesaid unconstitutional arrest quota custom and/or policy because it was undertaken in a manner which indicated that the individual Defendant "John Does" OFFICERS and Defendant POLICE OFFICER WILFREDO BENITEZ who participated in Plaintiff MALASIA LEWIS' arrest made the determination to arrest her before determining why she should be arrested.

240. The particular arrest of the Plaintiff MALASIA LEWIS is believed to have been motivated in whole or in part by the aforesaid unconstitutional arrest quota custom and/or policy because the Plaintiff MALASIA LEWIS was arrested after it was already established that she was not carrying any weapons or illegal substances, did not have any outstanding warrants against her, and was not engaged in illegal conduct of any kind just before the time of her arrest.

FIRST CLAIM FOR RELIEF
DEPRIVATION OF FEDERAL CIVIL RIGHTS UNDER 42 U.S.C. § 1983

241. Plaintiff MALASIA LEWIS repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

242. All of the aforementioned acts of the Defendant CITY and Defendant POLICE OFFICERS, their agents, servants and employees, were carried out under the color of state law.

243. All of the aforementioned acts deprived Plaintiff MALASIA LEWIS of the rights, privileges and immunities guaranteed to citizens of the United States by the First, Fourth, Fifth, Eighth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

244. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, with all of the actual and/or apparent authority attendant thereto.

245. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

246. The Defendant POLICE OFFICERS and Defendant City Of New York, collectively and individually, while acting under color of state law, engaged in Constitutionally-violative conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

SECOND CLAIM FOR RELIEF
FALSE ARREST UNDER 42 U.S.C. § 1983

247. Plaintiff MALASIA LEWIS repeats, reiterates, and re-alleges each and every allegation

⁹ Rayson, Graham, "The NYPD Tapes, Part 2: Bed-Stuy Street Cops Ordered: Turn This Place Into A Ghost Town." Village Voice, May 11, 2010. Article incorporated by reference herein and available online at <http://www.villagevoice.com/2010-05-11/news/nypd-tapes-part-2-bed-stuy/>.

contained in the above paragraphs with the same force and effect as if fully set forth herein.

248. As a result of the aforesaid conduct by Defendants, the Plaintiff MALASIA LEWIS was subjected to an illegal, improper and false arrest by the Defendant POLICE OFFICERS and taken into custody and caused to be falsely imprisoned, detained and confined without any probable cause, privilege, or consent.

249. As a result of the foregoing, the Plaintiff MALASIA LEWIS' liberty was restricted for an extended period of time; she was put in fear for her safety and was caused to suffer embarrassment and humiliation, without probable cause.

THIRD CLAIM FOR RELIEF
FAILURE TO INTERVENE UNDER 42 U.S.C. §1983

250. Plaintiff MALASIA LEWIS repeats, reiterates and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

251. The Defendant POLICE OFFICERS and Defendant CITY OF NEW YORK had an affirmative duty to intervene on Plaintiff MALASIA LEWIS' behalf to prevent the above-referred violations of her constitutional rights.

252. The individual Defendant POLICE OFFICERS failed to intervene on Plaintiff MALASIA LEWIS' behalf to prevent the violation of her constitutional rights despite having had realistic opportunities to do so.

253. The individual Defendant POLICE OFFICER WILFREDO BENITEZ failed to intervene on Plaintiff MALASIA LEWIS' behalf to prevent the violation of her constitutional rights despite having substantially contributed to the circumstances within which the Plaintiff MALASIA LEWIS' rights were violated by the Defendant POLICE OFFICERS affirmative conduct.

254. The individual Defendant POLICE OFFICER MELISSA RODRIGUEZ failed to intervene on Plaintiff MALASIA LEWIS' behalf to prevent the violation of her constitutional rights despite having substantially contributed to the circumstances within which the Plaintiff MALASIA LEWIS' rights were violated by the Defendant POLICE OFFICERS affirmative conduct.

255. As a result of the aforementioned conduct of the individual defendants, Plaintiff MALASIA LEWIS' constitutional rights were violated.

FOURTH CLAIM FOR RELIEF
EXCESSIVE FORCE UNDER 42 U.S.C. § 1983

256. Plaintiff MALASIA LEWIS repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

257. Defendant "John Does" POLICE OFFICERS administered a brutal beating upon Plaintiff MALASIA LEWIS in the absence of need for such action and force.

258. Defendant POLICE OFFICER WILFREDO BENITEZ administered a brutal beating upon Plaintiff MALASIA LEWIS in the absence of need for such action and force.

259. Defendant POLICE OFFICERS threw, shoved, kicked, spit on, slammed, and subjected Plaintiff MALASIA LEWIS to several physically aggressive maneuvers without Defendants identifying a requisite need for such action and force.

260. The level of force employed by Defendant POLICE OFFICERS against Plaintiff MALASIA LEWIS was objectively unreasonable.

261. The force employed by Defendant POLICE OFFICERS against Plaintiff MALASIA LEWIS did not advance any proper government objective.

262. As a result of the aforementioned conduct of defendants, Plaintiff MALASIA LEWIS was subjected to excessive force and sustained physical injuries.

263. As a result of the aforementioned conduct of Defendant POLICE OFFICERS, Plaintiff MALASIA LEWIS suffered and sustained injuries to both of her wrists.

264. As a result of the aforementioned conduct of Defendant POLICE OFFICERS, Plaintiff MALASIA LEWIS suffered and sustained injuries to her face.

265. As a result of the aforementioned conduct of Defendant POLICE OFFICERS, Plaintiff MALASIA LEWIS temporarily lost consciousness.

266. While in the 44th Precinct and still in the custody of the Defendant New York Police Department, Plaintiff MALASIA LEWIS was handcuffed to a pole.

267. While in the 44th Precinct and still in the custody of the Defendant New York Police Department and handcuffed to a pole, Plaintiff MALASIA LEWIS had recently been beaten to the point of unconsciousness.

268. While in the 44th Precinct and still in the custody of the Defendant New York Police Department and handcuffed to a pole, Plaintiff MALASIA LEWIS had recently been beaten to the point of unconsciousness and was not a flight risk.

269. The Defendant New York Police Department's act of handcuffing Plaintiff MALASIA LEWIS to a pole when she had recently been beaten to the point of unconsciousness and was not a flight risk constituted a use of unnecessary force.

270. The Defendant New York Police Department's act of handcuffing Plaintiff MALASIA LEWIS to a pole when she had recently been beaten to the point of unconsciousness and was not a flight risk constituted a use of excessive force.

271. As a result of Defendants' impermissible conduct, Plaintiff MALASIA LEWIS demands judgment against Defendants in a sum of money to be determined at trial.

FIFTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER *MONELL*

272. Defendants used excessive force on Plaintiff MALASIA LEWIS in the absence of any evidence of criminal wrongdoing or other justification for the use of such force, notwithstanding their knowledge that said uses of force were unreasonable, unjustified, and would jeopardize Plaintiff MALASIA LEWIS' liberty, well-being, safety and constitutional rights.

273. Defendants arrested and incarcerated Plaintiff MALASIA LEWIS in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize Plaintiff MALASIA LEWIS' liberty, well-being, safety and constitutional rights.

274. The acts complained of were carried out by the aforementioned individual Defendant POLICE OFFICERS in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

275. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

276. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- a. the continuing practice or custom of New York City police officers utilizing disproportionate force in a punitive, retaliatory or otherwise wrongful manner in interactions with individuals and groups of individuals engaged in the exercise of their First Amendment rights to free speech and expressive association;
- b. wrongfully arresting individuals without conducting investigations sufficient to ascertain whether there is probable cause to arrest said persons;
- c. wrongfully arresting individuals without warrants and without conducting investigations sufficient to ascertain whether there is probable cause to arrest said persons;
- d. the failure to properly screen, supervise, discipline, transfer, counsel, or otherwise control police officers engaged in the excessive use of force or in warrantless or otherwise unconstitutional arrests or otherwise impermissible imprisonments, particularly those who are repeatedly accused of such acts;
- e. the custom or practice of members of the New York City Police Department known as the "Blue Wall of Silence," wherein members of the New York City Police Department intentionally and willfully fail to cooperate with investigations into the misconduct or corrupt activities of their fellow officers, a practice which leads New York City police officers to regularly condone and cover up police abuse of power by telling false and incomplete stories.

277. The above-referred custom or practice of members of the New York City Police Department known as the "Blue Wall of Silence" was discussed at length on pages 53-59 of the July 7, 1994 *Mollen Commission Report*.¹⁰

278. The July 7, 1994 *Mollen Commission Report* was prepared for and at the request of the Defendant City of New York, and therefore knowledge of its contents may be imputed to Defendant City of New York.

279. One police officer who testified before the Mollen Commission explained that the code of silence "...starts in the Police Academy, and it just develops from there.... It starts with the instructors telling you never to be a rat, never give up your fellow officer. It starts with other recruits telling you they'll never give you up, and it just goes down the line as you go... into a precinct." *Mollen Commission Report* at 55.

280. Another officer who testified before the Mollen Commission stated that "[c]ops don't tell on cops. And if they did tell on them, just say if a cop decided to tell on me, his career's ruined. He's going to be labeled as a rat.... he's going to have nobody to work with. And chances are if it comes down to it... [the whistleblower's fellow officers are] going to let him get hurt." *Id.* at 53-54.

281. A third officer who testified before the Mollen Commission concurred, stating: "[i]f you're labeled a rat... you're going to have a difficult time for the remainder of your career.... [i]t was something that you couldn't shake." *Id.* at 54.

¹⁰ Available online at http://www.parc.info/client_files/Special%20Reports/4%20-%20Mollen%20Commission%20-%20NYPD.pdf

282. An NYPD lieutenant who testified before the Mollen Commission confirmed that officers are at times “ostracized” for breaking the code of silence. *Id.*

283. An NYPD captain who disciplined his subordinates for misconduct and reported allegations of corruption to NYPD Internal Affairs explained to the Mollen Commission that he had been transferred to thirty-eight (38) different commands in the course of his career, and in almost every case “he found evidence that his reputation had preceded him. At one command, his locker was burned; at another, his car tires were slashed; at another, he received threats of physical harm.” *Id.*

284. The *Mollen Commission Report* explicitly identified police brutality, including “implicit or explicit threat[s] of physical harm[,]” and official tolerance thereof, as critical issues that must be investigated by “any Commission investigating police corruption.” *Id.* at 44.

285. The *Mollen Commission* went on to fault the NYPD’s intelligence gathering regarding incidents of brutality as “wholly inadequate.” *Id.* at 45.

286. The *Mollen Commission* found that “[p]olice brutality is... used as a rite of initiation to prove that an officer is a tough or ‘good’ cop, one who can be accepted and trusted by his fellow officers not to report wrongdoing.” *Id.* at 47.

287. One officer who testified before the Mollen Commission noted that brutality “is a form of acceptance. It’s not simply giving a beating. It’s the other officers begin [sic] to accept you more.” *Id.*

288. The Mollen Commission also found that NYPD “supervisors sometimes turn a blind eye to evidence of unnecessary violence.... [b]ecause a complaint usually comes down to an officer’s word (and often the word of fellow officer witnesses) against the... [complainant’s] word, it is easy for a supervisor to let clear acts of brutality slide by without recourse.” *Id.* at 49.

289. As of the July 7, 1994 *Mollen Commission Report*, Defendant City of New York had notice that the officers and commanders of the New York City Police Department tolerated and encouraged police to lie to cover up the wrongful conduct of themselves and their fellow officers, including brutal conduct like that which was perpetrated and/or condoned by the Defendant POLICE OFFICERS with respect to Plaintiff MALASIA LEWIS.

290. That the Defendant City of New York continued to have notice after 1994 that the officers and commanders of the New York City Police Department continued to tolerate and encourage police to lie to cover up the wrongful conduct of themselves and their fellow officers after the publication of the Mollen Commission Report can be shown with reference to the following cases:

- a. **Ariza v. City of New York**, 1996 U.S. Dist. LEXIS 20250, 14 (E.D.N.Y. March 7, 1996) [“The [municipal] defendants concede, however, that the code exists to prevent other OFFICERS from reporting corruption or dishonesty by fellow OFFICERS.... [t]he principle behind the ‘blue wall of silence’ is that OFFICERS will suffer recrimination for breaking ranks and subjecting police conduct to public scrutiny.”]
- b. **White-Ruiz v. City of New York**, 1996 U.S. Dist. LEXIS 15571, 23 (S.D.N.Y. October 21, 1996) [“[P]laintiff offers sufficient evidence to permit a reasonable trier of fact to infer that the ‘blue wall of silence’ constitutes a custom or usage of the Department”]
- c. **United States v. Rosario**, 237 F. Supp. 2d 242, 248 (E.D.N.Y. 2002) [“[Assistant U.S. Attorney] Palmer testified that while supervising the federal investigation into the Louima assault, she routinely confronted a ‘blue wall of silence’ erected by POLICE OFFICERS and PBA officials intent on obstructing efforts to uncover the full truth about what had happened at the 70th precinct on August 9, 1997.”]

- d. **Barry v. New York City Police Dep't**, 2004 U.S. Dist. LEXIS 5951, 40-41 (S.D.N.Y. April 7, 2004) ["[P]laintiff's witnesses speak from firsthand experience about the blue wall of silence.... Plaintiff complains of acts that are of the precise nature as the customs and practices described in the [Mollen Commission] Report."]
- e. **Griffin v. City of New York et al.**, 10-CV-01824 (E.D.N.Y. 2010) [Plaintiff detective sues on pattern of retaliation following his reporting fellow detective to Internal Affairs, fellow OFFICERS cover for detective accused of misconduct, see, e.g., at ¶35: "Internal Affairs conducted its investigation into [Detective] Plaintiff's allegations [of misconduct] against [Detective] McCarthy. All of the material witnesses failed to cooperate with the investigation by being less than truthful.... [a]s a result, the allegations made by Plaintiff against McCarthy were dismissed as unsubstantiated."]

291. Upon information and belief, the above-referred constitutionally violative policies, practices and customs remain widespread, open, and notorious throughout the NYPD to date.

292. Upon information and belief, the policymakers of the NYPD and Defendant City of New York are aware that these practices and customs of NYPD officers continue to date, and have failed to take adequate steps to curb these practices and customs, which regularly cause the violation of citizens' Constitutional rights.

293. Defendant City of New York has failed to meaningfully curb these Constitutionally-violative customs and practices to date.

294. In the introduction to the *Mollen Commission Report*, it is noted that "the [Internal Affairs] system designed to protect the [New York City Police] Department from corruption minimized the likelihood of uncovering it." *Mollen Commission Report* at 3.

295. The *Mollen Commission Report* explained that at that time, the Internal Affairs Division (re-named the Internal Affairs Bureau in a 1993 restructuring) attempted "to close cases with as little effort as possible.... One officer told us they sit around and 'eat donuts and do crossword puzzles' -- and the supervisors and commanders did little more.... an anonymous survey of the work conditions and attitudes of IAD investigators... revealed that almost half of IAD investigators' time was spent on non-investigatory matters -- and more of their 'investigative' work was done without ever leaving their office.... The facts confirmed IAD's do-nothing reputation." *Id.* at 85

296. Since the *Mollen Commission Report* was published in 1994, the number of complaints of police corruption and other misconduct logged annually by NYPD Internal Affairs has nearly quadrupled, rising from 14,789 logs received in 1994 to 44,994 logs received in 2006, the last year for which NYPD reporting is available. *NYPD Internal Affairs 2006 Annual Report*, 12-13.¹¹

297. Over that same time period, the number of corruption and other police misconduct complaints investigated annually by NYPD Internal Affairs has fallen by more than half, from 2,258 investigations in 1994 to 1057 investigations in 2006. *Id.*

298. Upon information and belief, the steady decline in investigations by NYPD Internal Affairs since the publication of the *Mollen Commission Report* is representative of a return to a "business-as-usual" mentality with respect to police corruption and brutality within the NYPD.

¹¹ 1993-2006 Internal Affairs Reports available online at <http://www.nyclu.org/news/nyclu-releases-16-years-of-nypd-corruption-reports>

299. Defendant City of New York has had notice through the annual NYPD Internal Affairs reports that NYPD Internal Affairs is not effectively fulfilling its mandate of policing NYPD corruption and brutality generally.

300. Upon information and belief, Defendant City of New York has had notice through the annual NYPD Internal Affairs reports that NYPD Internal Affairs is not effectively curbing the established and widespread customs and practices of NYPD OFFICERS employing brutality with impunity and covering for one another's misconduct.

301. Defendant City of New York has also had notice that the New York City Civilian Complaint Review Board ("CCRB") has not been effective in curbing the above-referred practices of NYPD officers employing brutality with impunity and covering for one another's misconduct.

302. This is not a new phenomenon; in Sango v. New York, 1989 U.S. Dist. LEXIS 18214, 40-41 (S.D.N.Y. June 19, 1989), the court found that CCRB investigations into police misconduct were so grossly inadequate that "their predictable results could have led... officers to believe that their conduct, no matter how improper, would go unpunished."

303. That Defendant City of New York had knowledge of its continuing failure to abate the above-referred practices and customs can be shown with reference to the following facts reported to the City in the *2006 Annual Report* of the CCRB:¹²

- a. Only 12,059 of the 29,446 cases of alleged police misconduct closed by the CCRB between 2002 and 2006 received full investigations. *CCRB 2006 Annual Report*, 93.
- b. Only 1,441 of the 29,446 cases of alleged police misconduct closed by the CCRB between 2002 and 2006 resulted in a finding of even one substantiated allegation. *Id.*
- c. The NYPD either took no disciplinary action whatsoever or merely issued instructions in 1,062 of the 1,918 cases of CCRB-substantiated police misconduct closed by the department between 2002 and 2006. Some of these cases had been forwarded to the NYPD by the CCRB before 2002. *Id.* at 101.
- d. In the five years between 2002 and 2006 only one (1) NYPD officer was subject to employment termination as a result of allegations of misconduct substantiated by the CCRB. *Id.* at 100.
- e. The CCRB substantiated only 3.5% of the excessive force allegations reported between 2002 and 2006. *Id.* at 95.

304. The New York Civil Liberties Union report on the CCRB's activities between 1994 and 2006, entitled "Mission Failure: Civilian Review of Policing in New York City 1994-2006" ("NYCLU Report")¹³ reviewed, collated and summarized information from the CCRB's Annual Reports and other sources, resulting in the following findings:

- a. CCRB complaint data indicates that serious police misconduct, including improper threats and use of force, occurs with significant frequency, with allegations of excessive force in half of all complaints filed with the CCRB. NYCLU Report at 4.
- b. The NYPD takes no disciplinary action whatsoever against nearly 30% of OFFICERS named in substantiated CCRB complaints, and gave only "instructions" to nearly a third of OFFICERS who were disciplined following substantiated CCRB complaints between 2000 and 2005. *Id.* at 5.
- c. "In recent years it appears that the NYPD has adopted a radically more lenient disciplinary standard as regards acts of police misconduct directed at civilians. In 2004 the police department ordered instructions in approximately 30 percent of all disciplinary

¹² 2001-2010 CCRB Reports available online at <http://www.nyc.gov/html/ccrb/html/reports.html>

¹³ Available online at http://www.nyclu.org/files/ccrb_failing_report_090507.pdf

actions related to a substantiated CCRB complaint. In 2005 instructions represented nearly 60 percent of such disciplinary actions; and in 2006 instructions rose to 72 percent of all disciplinary actions related to police misconduct directed at civilians. Suspension of a POLICE OFFICER has become an extraordinarily rare occurrence, even when egregious acts of misconduct are involved.” Id. at 6.

305. In all, the cases, studies, and reports cited in the paragraphs above demonstrate that the customs and practices of NYPD OFFICERS covering for and otherwise condoning or abetting the unlawful, wrongful and/or unconstitutional actions of their fellow POLICE OFFICERS continued after the *Mollen Commission Report* to the present day.

306. In all, the cases, studies, and reports cited in the paragraphs above demonstrate that the Defendant City of New York knew or should have known that the customs and practices of NYPD OFFICERS covering for and otherwise condoning or abetting the unlawful, wrongful and/or unconstitutional actions of their fellow POLICE OFFICERS continued after the *Mollen Commission Report* to the present day.

307. The policy of failure to screen, discipline, supervise, counsel, transfer, control, and correct unconstitutional patterns or conditions, is evidenced, inter alia, by the cases and reports cited above.

308. Upon information and belief, Defendant, CITY OF NEW YORK, and the New York City Police Department failed to effectively screen, train, supervise and discipline its POLICE OFFICERS, including, but not limited to, Defendant “John Does” POLICE OFFICERS, Defendant POLICE OFFICER WILFREDO BENITEZ and Defendant POLICE SERGEANT JOSEPH FAELLO, as demonstrated by their propensity for group violence, including excessive use of force and restraint, and for their failure to protect citizens from unconstitutional conduct of other POLICE OFFICERS.

309. Upon information and belief, Defendant CITY OF NEW YORK, failed to put into place and otherwise maintained an inadequate structure for risk containment and stress management relative to its POLICE OFFICERS. Inter alia, the structure was deficient at the time of pre-selection and selection to evaluation and exchange within the command structure about the performance of individual POLICE OFFICERS; to the training of supervisory personnel to effectively and adequately evaluate performance of an officer; and to otherwise put the command structure on notice that an individual was at significant levels of risk to the public at large or to specific segments thereof.

310. The net effect of these deficiencies and failures was to permit POLICE OFFICERS of the New York City Police Department to function at levels of significant and substantial risk to the public.

311. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department evince deliberate indifference to the safety, well-being, and constitutional rights of Plaintiff MALASIA LEWIS.

312. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by Plaintiff MALASIA LEWIS as alleged herein.

313. The foregoing customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the Plaintiff MALASIA LEWIS as alleged herein.

314. As a result of the foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department, the Plaintiff MALASIA LEWIS was subjected to excessive force, false arrest, and excessive and unnecessary detention.

315. As a result of the foregoing, Plaintiff MALASIA LEWIS was caused to suffer personal injuries, violations of her civil rights, negligent and intentional infliction of emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of wages, legal expenses, and damage to her reputation and standing within her community.

316. As a result of the foregoing, Plaintiff MALASIA LEWIS demands judgment against Defendants in a sum of money to be determined at trial.

SIXTH CLAIM FOR RELIEF
EQUAL PROTECTION UNDER 42 U.S.C. § 1983

317. Plaintiff MALASIA LEWIS repeats, reiterates, and re-alleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

318. That at all times described herein, Plaintiff MALASIA LEWIS possessed of the right to equal protection under the laws, as guaranteed under the 14th Amendment to the United States Constitution.

319. That Defendant "John Does" POLICE OFFICERS and Defendant POLICE OFFICER WILFREDO BENITEZ arrested and incarcerated Plaintiff MALASIA LEWIS in the absence of any evidence of criminal wrongdoing, notwithstanding their knowledge that said arrest and incarceration would jeopardize Plaintiff MALASIA LEWIS' liberty, well-being, safety and constitutional rights.

320. That the acts complained of were carried out by the aforementioned individual Defendant POLICE OFFICERS in their capacities as police officers and officials, with all the actual and/or apparent authority attendant thereto.

321. That the acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and officials pursuant to the customs, policies, usages, practices, procedures, and rules of the City of New York and the New York City Police Department, all under the supervision of ranking officers of said department.

322. That Plaintiff MALASIA LEWIS was falsely accused of crimes and violations and was taken into Police custody and detained against her will.

323. That following her arrest, Plaintiff MALASIA LEWIS was charged with crimes and violations.

324. That the above described charges were a pretext intended to justify Plaintiff MALASIA LEWIS' illegal arrests.

325. That the actions of Defendant POLICE OFFICERS heretofore described, constituted unlawful detention, imprisonment, assault and battery and malicious prosecution and were designed to and did cause specific bodily harm, pain and suffering both in violation of the Plaintiff MALASIA LEWIS' Constitutional rights as guaranteed under 42 U.S.C. §1983 and the United States Constitution, Fourth and Fourteenth Amendments and the Constitution of the State of New York and in direct retaliation for the Plaintiff MALASIA LEWIS' exercise of her civil and constitutional rights of free speech, free expression, and expressive association as guaranteed by First and Fourteenth Amendments to the United States Constitution as well as the Constitution of the State of New York.

326. On March 1, 2010, the New York Times published an Op-Ed piece entitled "Watching Certain People," wherein the author cited to New York City Police Department Statistics showing that of the 2,798,461 stops made by police officers during the years 2004 through 2009, African-Americans accounted for 1,444,559 of those stops, and Hispanics accounted for 843,817 of those stops, or 51.6 percent and 30.1 percent, respectively. The vast majority of those stopped, 88.2 percent, were not guilty of any crime.¹⁴

327. On February 22, 2011, the New York Daily News published an article citing New York Police Department stops for the year 2010, which numbered 601,055. This figure marked a 4.3 percent increase from the year 2009, and African-American and Latinos accounted for approximately 85 percent of all stops.¹⁵

328. The particular arrest of the Plaintiff MALASIA LEWIS is believed to have been motivated in whole or in part by a custom or practice of racism of victimization, not of hate, whereby minority individuals are charged with crimes and violations such as resisting arrest, disorderly conduct, and obstruction of governmental administration, in the absence of probable cause to arrest, due to a perceived ease of prosecution of such minority individuals.

329. The particular arrest of the Plaintiff MALASIA LEWIS is believed to have been motivated in whole or in part by a custom or practice of racism of victimization, not of hate, whereby minority individuals are charged with crimes and violations such as resisting arrest, disorderly conduct, and obstruction of governmental administration, in the absence of probable cause to arrest, due to a perceived ease of prosecution of such minority individuals, because the Defendant POLICE OFFICERS informed Plaintiff MALASIA LEWIS that she was being arrested after it was already established that Plaintiff MALASIA LEWIS was not carrying any weapons or illegal substances, and did not have any outstanding warrants against her, and immediately following her attempt to question the Defendant POLICE OFFICERS as to why she was being detained.

330. The Defendant POLICE OFFICERS, through their actions, carried out a discriminatory application of such laws, driven by a discriminatory motivation of what might otherwise be facially neutral statutes due to a perceived ease of prosecution.

331. As a result of the aforementioned conduct, the defendants have violated Plaintiff MALASIA LEWIS' constitutional rights to equal protection, and thus Plaintiff MALASIA LEWIS is entitled to seek redress under 42 U.S.C. §1983, and is further entitled to injunctive relief to the extent necessary to prevent further disparate treatment and retaliation.

332. As a result of the above constitutionally impermissible conduct, Plaintiff MALASIA LEWIS was caused to suffer personal injuries, violation of civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, loss of property, damage to property, legal expenses and damage to her reputation and standing within her community.

¹⁴ Herbert, Robert, "Watching Certain People," New York Times, March 1, 2010; Seattle Post-Intelligencer, February 28, 2008. Article incorporated herein by reference and available online at: <http://www.nytimes.com/2010/03/02/opinion/02herbert.html?scp=7&sq=policestopsfriskAfricanAmericanmen&st=cse>

¹⁵ Parascandola, Rocco, "New York Police Department Stopped More than 600,000 in 2010, the Highest Number Ever Recorded, February 22, 2011. Article incorporated herein by reference and available online at: http://articles.nydailynews.com/2011-02-22/news/29442269_1_latino-men-fight-crime-new-yorkers

333. As a result of Defendants' impermissible conduct, Plaintiff MALASIA LEWIS demands judgment against Defendants in a sum of money to be determined at trial.

**SEVENTH CLAIM FOR RELIEF
RETALIATION FOR FIRST AMENDMENT PROTECTED EXPRESSION
UNDER 42 U.S.C. § 1983**

334. Plaintiff MALASIA LEWIS repeats, reiterates and realleges each and every allegation contained in the above paragraphs with the same force and effect as if fully set forth herein.

335. At or around the time that Plaintiff came into contact with the Defendant Police Officers, Plaintiff MALASIA LEWIS engaged in protected speech or conduct, including but not limited to asking questions and protesting the manner in which she was being treated by the Defendant POLICE OFFICERS.

336. Defendant POLICE OFFICERS took adverse action against Plaintiff MALASIA LEWIS.

337. Defendant POLICE OFFICERS took adverse actions against Plaintiff MALASIA LEWIS by using wrongful and unjustified force upon Plaintiff.

338. Defendant POLICE OFFICERS took adverse action against Plaintiff MALASIA LEWIS by unlawfully arresting her without probable cause.

339. Defendant POLICE OFFICERS took adverse action against Plaintiff MALASIA LEWIS by falsely accusing her of crimes and violations.

340. Defendant POLICE OFFICERS took adverse action against Plaintiff MALASIA LEWIS by taking Plaintiff into Police custody and detaining her against her will.

341. Upon information and belief, there was a causal connection between the protected speech and conduct engaged in by Plaintiff MALASIA LEWIS and the adverse actions taken by the Defendant Police Officers.

342. The causal connection between the protected speech and conduct engaged in by Plaintiff MALASIA LEWIS and the adverse actions taken against Plaintiff by Defendant POLICE OFFICERS was demonstrated by, among other things, the fact that the Defendant Police Officers used excessive force against Plaintiff MALASIA LEWIS in the absence of justification.

343. The causal connection between the protected speech and conduct engaged in by Plaintiff MALASIA LEWIS and the adverse actions taken against Plaintiff by Defendant Police Officers was demonstrated by, among other things, the absence of probable cause justifying Plaintiff MALASIA LEWIS' arrest.

344. The Plaintiff was falsely accused of crimes and violations and was taken into Police custody and detained against her will.

345. Following her arrest, Plaintiff MALASIA LEWIS was subject to prosecution.

346. The above-described charges were a pretext intended to justify the Plaintiff's illegal arrest.

347. The actions of the Defendant POLICE OFFICERS heretofore described, constituted unlawful detention, imprisonment, assault and battery and were designed to and did cause bodily harm, pain and suffering both in violation of the Plaintiffs' Constitutional rights as guaranteed under 42 U.S.C. §1983 and the United States Constitution, Fourth and Fourteenth Amendments and the Constitution of the State of New York and in direct retaliation for the Plaintiff's exercise of their civil and

constitutional rights of free speech, free expression and expressive association as guaranteed by First and Fourteenth Amendments to the United States Constitution as well as the Constitution of the State of New York.

348. That the conduct and actions of Defendants POLICE OFFICERS acting under color of State law, in assaulting, detaining and imprisoning the Plaintiff were done intentionally, maliciously, and/or with a reckless disregard for the natural and probable consequences of their acts, were done without lawful justification, and were designed to and did cause bodily harm, pain and suffering both in violation of the Plaintiff's Constitutional rights as guaranteed under 42 U.S.C. §1983, the United States Constitution, First, Fourth and Fourteenth Amendments and the Constitution of the State of New York and in direct retaliation for the Plaintiff's exercise of his civil and constitutional rights of free speech, free expression and expressive association as guaranteed by First and Fourteenth Amendments to the United States Constitution as well as the Constitution of the State of New York.

349. The Defendant POLICE OFFICERS deprived the Plaintiff of her liberty in violation of both her civil and constitutional rights, as guaranteed under 42 U.S.C. §1983 and set forth in the United States Constitution, First, Fourth and Fourteenth Amendments and the Constitution of the State of New York and in direct retaliation for the Plaintiffs' exercise of their civil and constitutional rights of free speech, free expression and expressive association as guaranteed by First and Fourteenth Amendments to the United States Constitution as well as the Constitution of the State of New York.

350. Defendants' actions were undertaken under color of law and would not have existed but for Defendants using their official power.

351. As a result of the above constitutionally impermissible conduct, Plaintiff was caused to suffer personal injuries, violation of civil rights, emotional distress, anguish, anxiety, fear, humiliation, loss of freedom, legal expenses and damage to his reputation and standing within her community.

352. As a result of Defendants' impermissible conduct, Plaintiff demands judgment against Defendants in a sum of money to be determined at trial.

353. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the constitutional rights of Plaintiff MALASIA LEWIS.

354. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of Plaintiff MALASIA LEWIS's constitutional rights.

355. All of the foregoing acts by Defendants deprived Plaintiff MALASIA LEWIS of federally protected rights, including, but not limited to, the right:

- A. Not to be deprived of liberty without due process of law;
- B. To be free from seizure and arrest not based upon probable cause;
- C. To free expression; and
- D. To receive equal protection under the law.

356. As a result of the foregoing, Plaintiff MALASIA LEWIS is entitled to compensatory damages and punitive damages against the Defendants in amounts to be determined at trial.

WHEREFORE and in light of the foregoing, it is respectfully requested that the Court assume jurisdiction and:

- [a] Invoke pendent party and pendent claim jurisdiction.
- [b] Award appropriate compensatory and punitive damages.
- [c] Award appropriate declaratory and injunctive relief.
- [d] Empanel a jury.
- [e] Award attorney's fees and costs.
- [f] Award such other and further relief as the Court deems to be in the interest of justice.

DATED: New York, New York
June 28, 2012

Respectfully submitted,

~/s//~

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